

HOUSE BILL NO. 122

INTRODUCED BY L. BREWSTER

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING RIGHT-OF-WAY LAWS FOR UTILITY LINES AND FACILITIES TO INCLUDE BROADBAND LINES AND NATURAL GAS PIPELINES; AND AMENDING SECTION 69-4-101, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 69-4-101, MCA, is amended to read:

"69-4-101. Use of public right-of-way for utility lines and facilities. A telegraph, telephone, electric light, ~~broadband,~~ natural gas, or electric power line corporation or public body or any other person owning or operating ~~such a telegraph, telephone, electric light, broadband, or electric power line or natural gas pipeline~~ is hereby authorized to install its respective plants and appliances necessary for service and to supply and distribute electricity and natural gas for lighting, heating, power, and other purposes and ~~to that end, to~~ construct ~~such the~~ telegraph, telephone, electric light, ~~broadband,~~ or electric power lines or natural gas pipelines, from point to point, along and ~~upon on~~ any of the public roads, streets, and highways in the state; by the erection of necessary fixtures, including posts, piers, and abutments necessary for the wires and pipelines. The ~~same shall~~ telegraph, telephone, electric light, ~~broadband,~~ or electric power lines or natural gas pipelines must be so constructed so as not to incommode inconvenience or endanger the public in the use of ~~said the~~ roads, streets, or highways, and nothing herein ~~shall be so in this section may be~~ construed as to restrict the powers of city or town councils."

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